

assuming the allegations of the Complaint are true, namely, that Defendant entered into an agreement with Plaintiff that involved a form of lending, then broke that agreement when Defendant did not repay the loan, that the contract terms called for the repayment of the loaned amount plus payment for attorney's fees and other costs, and that Plaintiff's damages are a result of Defendant's failure to repay the loaned amount, then the damages in the Complaint are supported by the allegations.

Disposition

Defendant's Motion to Strike is Denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY: PIAZZA, JOLYNN

TENTATIVE RULING:

Plaintiff filed a motion to quash service of summons. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify both parties.

11. 9:00 AM CASE NUMBER: MSL21-02132
CASE NAME: CAPITAL ONE BANK VS ISRAEL
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**
FILED BY: CAPITAL ONE BANK (USA), N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06,